

-
File No.: EXP202211775

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure conducted by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on 02/11/2022. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), for the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible violation of the provisions of Article 6.1 of the GDPR.

The reasons supporting the complaint are as follows:

The complainant states that he is a neighbor of the respondent, sharing a landing, and that the respondent has installed, without prior consent from the Homeowners' Association of the building where both residences are located, a digital peephole that would record the common landing and the access door to the complainant's residence. He notes that he has sent a burofax requesting the removal of the peephole, without receiving an adequate response.

He provides images of the location of the peephole and the affected area; the burofax sent to the respondent; a document with the technical characteristics of the installed peephole.

The documents submitted are:

- Communications exchanged between the complainant and the camera operator
- Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was not received by the responsible party; the forwarding was reiterated on 20/12/2022 by certified postal mail, and was again returned marked "absent."

THIRD: On February 2, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: On April 4, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, for the alleged violation of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

Attempted notification at the respondent's address resulted in absence, and notification was carried out on the Single Edict Board on 09/05/2023.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and after the period granted for the submission of allegations had elapsed, it was confirmed that no allegations had been received from the respondent.

Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the initiation agreement - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts that specified the accusation, the violation of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, considering that the respondent has not made allegations against the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case a proposal for resolution.

In view of all the actions taken by the Spanish Agency for Data Protection in this procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: It is established, according to documentation provided by the complainant, that the respondent has installed, without prior consent from the Homeowners' Association of the building where both residences are located, a digital peephole capable of recording the common landing and the access door to the complainant's residence.

LEGAL GROUNDS

I

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/7

II

The physical image of a person, in accordance with Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to this Regulation. Article 4.2 of the GDPR defines the concept of "processing" of personal data.

"'processing': any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, alignment, combination, restriction, erasure or destruction;"

Images generated by a system of cameras or video cameras are personal data, and therefore their processing is subject to data protection regulations.

It is therefore pertinent to analyze whether the processing of personal data (images of individuals) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

III

Article 6.1 of the GDPR establishes the circumstances under which the processing of personal data can be considered lawful.

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) processing is necessary to protect vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child."

Regarding processing for video surveillance purposes, Article 22 of the LOPDGDD establishes that natural or legal persons, public or private, may carry out the processing of images through camera or

video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities.

Under no circumstances shall the use of surveillance practices beyond the environment subject to the installation be permitted. The installed cameras may not capture images of private spaces of third parties and/or public spaces without a duly justified cause, nor may they affect the privacy of passersby freely moving through the area.

IV

In accordance with the above, the processing of images through a video surveillance system, to be compliant with current regulations, must meet the following requirements:

1.- Natural or legal persons, public or private, may establish a video surveillance system for the purpose of preserving the safety of persons and property, as well as their facilities.

It must be assessed whether the intended purpose can be achieved by less intrusive means for the rights and freedoms of citizens. Personal data should only be processed if the purpose of the processing cannot reasonably be achieved by other means, considering Recital 39 of the GDPR.

The installation of video surveillance devices in Communities of Owners, especially if in common elements, must have the express authorization of the entire set of owners duly informed in this regard, in accordance with the LPH.

Video surveillance systems allow for the collection of data (images) of third parties, so they must comply with the current regulations on the matter.

It is necessary to have the necessary support, in accordance with Article 17.3 of the Horizontal Property Law, so that the installation or removal of concierge, security, or other services is possible, provided that the necessary quorum has been obtained, which is three-fifths of the total number of owners who also represent 3/5 of the participation quotas or, in other words, 60%.

The aforementioned agreement must be recorded in the minutes, where the support for the individual and/or collective measure, as applicable, by the set of owners is noted, as it affects a common area.

The Spanish Data Protection Agency offers access through its website [<https://www.aepd.es>] to:

- the legislation on personal data protection, including the GDPR and the LOPDGDD (section "Reports and resolutions" / "regulations"),
- the Guide on the use of video cameras for security and other purposes,
- the Guide for compliance with the duty to inform (both available in the "Guides and tools" section).

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/7

It is also of interest, in the case of carrying out low-risk data processing, the free tool Facilita (in the "Guides and Tools" section), which, through specific questions, allows assessing the situation of the data controller regarding the personal data processing they carry out, and, if applicable, generating various documents, informative and contractual clauses, as well as an annex with minimum indicative security measures.

V

In the present case, the claimed facts are specified in the installation of a video recording peephole on the door of the residence of the respondent party, which may be recording images of the common landing and the access door to the residence of the claimant party, without evidence that permission has been obtained from the homeowners' association. The claimant party has provided information regarding the device that indicates it has recording functionality.

The facts presented violate the provisions of Article 6.1 of the GDPR, constituting an infringement classified under Article 83.5 of the GDPR, which states the following:

"Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9; (...)"

For the purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

“Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following shall be considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679 (...).”

VI

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Therefore, it is appropriate to scale the sanction to be imposed according to the criteria established in Article 83.2 of the GDPR, and as provided in Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

6/7

For all these reasons, it is considered that the corresponding sanction is an administrative fine of 300 euros.

VII

In accordance with the provisions of Article 58.2 d) of the GDPR, each supervisory authority may “order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...”.

For all these reasons, the respondent party must proceed, within 30 days from the receipt of this resolution, to:

- The removal of the camera or video camera system from its current location or its reorientation, in such a way that the viewing of the images clearly shows that it does not capture
 - common areas of the residence.
 - the adjoining residence.

It is warned that failure to comply with the requirements of this agency may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may lead to the initiation of further administrative sanctioning procedures.

Therefore, in accordance with the applicable legislation and having assessed the criteria for scaling the sanctions whose existence has been established,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 300 euros (THREE HUNDRED euros).

SECOND: TO NOTIFY this resolution to B.B.B.

THIRD: TO ORDER B.B.B., with NIF ***NIF.1, that pursuant to Article 58.2.d) of the GDPR, within 30 days from the receipt of this resolution, to demonstrate compliance with the imposed measures, specified as:

- the removal of the camera or video camera system from its current location or its reorientation, in such a way that the viewing of the images clearly shows that it does not capture
 - common areas of the residence.
 - the adjoining residence.

FOURTH: To warn the sanctioned party that they must fulfill the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of the

C/ Jorge Juan, 6
www.aepd.es

art. 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in art. 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to art. 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, into the restricted account no. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receiving the notification and once it is executive, if the date of executive status falls between the 1st and the 15th of each month, inclusive, the deadline for making the voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with art. 48.6 of the LOPDGDD, and in accordance with the provisions of article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of art. 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in art. 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

938-010623

Mar España Martí
Director of the Spanish Agency for Data Protection
C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es